

**UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA**

**IN RE: ORDER REGARDING REFERRALS TO UNITED
STATES MAGISTRATE JUDGES**

Rule 1 of the Federal Rules of Civil Procedure provides for the “just, speedy, and inexpensive determination of every action or proceeding.” Consistent with that mandate, the court seeks to ensure that litigants are aware of available procedures that may facilitate the prompt and efficient resolution of civil cases.

One such procedure is to provide for disposition by a United States Magistrate Judge pursuant to 28 U.S.C. § 631 and Federal Rules of Procedure 73. Upon the consent of all parties, a Magistrate Judge may conduct all proceedings in a civil action, including jury or nonjury trials, and enter final judgment, with any appeal taken directly to the United States Court of Appeals for the Fourth Circuit. Parties who consent to disposition by a Magistrate Judge may benefit from earlier trial dates, greater scheduling certainty, reduced delay arising from competing criminal docket demands, and the potential for lower litigation costs associated with prolonged proceedings.

Because criminal matters take priority on District Judges’ dockets and are increasing in post-conviction complexity, civil cases face scheduling constraints and delayed resolution. Magistrate Judges, however, do not preside over felony criminal trials. As a result, parties who elect to proceed before a District Judge may experience a longer time to trial or final resolution than similarly situated parties who consent to disposition by a Magistrate Judge. Parties are thus encouraged to give informed consideration to whether consent to disposition by a Magistrate Judge would promote the just, speedy, and inexpensive resolution of their case.

**AUTHORITY FOR CONSENT TO DISPOSITION BY A MAGISTRATE
JUDGE**

The Federal Magistrates Act of 1968 established the Magistrate Judges’ system as a supplemental judicial resource to assist District Judges and provide better service to litigants. The Act authorizes District Judges to appoint United States Magistrate Judges. Under § 636(c) and Federal Rule of Civil Procedure 73, a

Magistrate Judge may, upon consent of the parties, conduct any or all proceedings in a jury or nonjury civil matter and enter final judgment in the case.

Federal Rule of Civil Procedure 73(b) provides that the clerk must give written notice to the parties of the opportunity to consent to disposition by a Magistrate Judge and that the court may remind parties of the Magistrate Judge's availability. The United States Supreme Court has acknowledged that federal Magistrate Judges are indispensable to the work of the federal courts. *See Peretz v. United States*, 501 U.S. 923, 928–29, 928 n.5 (1991). In light of this authority, the court finds that parties in civil cases should be informed that their cases may be resolved more quickly through consent to disposition by a Magistrate Judge, who has greater flexibility to accommodate the scheduling needs of litigants and attorneys in civil matters.

COMMENTS FROM THE COMMITTEE ON THE ADMINISTRATION OF THE MAGISTRATE JUDGES SYSTEM

This approach is consistent with the 2022 Report of the Committee on the Administration of the Magistrate Judges System of the Judicial Conference of the United States, which encourages district courts to inform counsel and litigants of the qualifications and authority of Magistrate Judges, the merit-based selection process, and the benefits of consenting to Magistrate Judges in civil cases. The Report notes that civil consent jurisdiction “is probably the greatest time-saver” for District Judges and litigants and provides parties with the prospect of an early, firm trial date.

United States Magistrate Judges are selected for eight-year terms by vote of the District Judges after a rigorous application and vetting process in accordance with the standards and procedures set by the Judicial Conference of the United States and the Administrative Office of the United States Courts. The Magistrate Judges in this District routinely handle civil matters, including pretrial issues, bench trials, and jury trials upon consent of the parties. Proceedings before a Magistrate Judge follow the same rules and procedures that apply before a District Judge, and any appeal is taken directly to the Fourth Circuit.

Parties retain the right to have their civil cases adjudicated by a District Judge and may withhold consent without adverse substantive consequences. This order should not be construed as an attempt to force any party to consent. Rather, it is

intended to ensure that parties are aware of an available alternative that may permit more prompt scheduling and resolution of civil matters in light of the competing demands on District Judges' dockets, thereby enabling parties to make an informed choice regarding the management of their case.

Based on the foregoing, it is **HEREBY ORDERED** as follows:

Attorneys of record in civil cases filed in this District shall provide a copy of this order to their clients and advise them of the availability of consenting to disposition by a United States Magistrate Judge so that an informed decision may be made regarding whether to proceed before a District Judge or consent to disposition by a Magistrate Judge for all proceedings, including trial and entry of final judgment. Attorneys of record shall submit a signed attestation of compliance with this order within 30 days of the filing of the first notice of appearance of counsel.

The Clerk of Court shall provide a copy of this order to self-represented litigants together with Form AO 85, Notice, Consent, and Reference of a Civil Action to a Magistrate Judge.

This order was approved by vote of the District Judges for the District of South Carolina on June 12, 2026.

IT IS SO ORDERED.

For the court:



Timothy M. Cain
Chief United States District Judge